

First Information Report — Case No. 214/2024

Police Station: T. Nagar | District: Chennai | State: Tamil Nadu

Date of FIR: 14 March 2024 | Time: 10:40 hrs

1. Complainant Details

Name: Rajesh Kumar Iyer, S/o Krishnan Iyer, Age 42, Occupation: Proprietor, M/s Iyer Textiles Pvt Ltd, No. 18 Usman Road, T. Nagar, Chennai - 600017.

2. Accused

Name: Suresh Babu Menon, S/o Gopalakrishna Menon, Age 37, Occupation: Business Partner, residing at Flat 4B, Kamala Towers, Anna Nagar, Chennai - 600040.

3. Sections of Law

Offence registered under Section 420 (Cheating), Section 406 (Criminal Breach of Trust), and Section 120B (Criminal Conspiracy) of the Indian Penal Code, 1860.

4. Brief Facts of the Case

The complainant states that on 3 January 2024, he entered into a partnership agreement with the accused for the supply of textile machinery, under which the accused was to deposit a sum of Rs. 12,50,000 (Rupees Twelve Lakh Fifty Thousand only) as working capital into the joint business account maintained at Indian Overseas Bank, T. Nagar Branch, Account No. XXXXXX4471.

The complainant further states that as per the signed Memorandum of Understanding dated 3 January 2024, the accused was required to deposit the amount within 15 days, i.e. on or before 18 January 2024. The complainant alleges that despite repeated reminders on 20 January, 5 February, and 28 February 2024, the accused failed to deposit the said amount and instead withdrew Rs. 3,40,000 from the joint account on 22 January 2024 without the complainant's consent.

The complainant states he personally visited the accused's residence on 1 March 2024 to discuss the matter, at which time the accused allegedly admitted verbally to having used the funds for personal purposes and promised repayment within a week. No repayment was made.

5. Witnesses Cited

(i) Mr. Anand Prakash, Accountant, Iyer Textiles Pvt Ltd (ii) Ms. Divya Shankar, Bank Relationship Manager, Indian Overseas Bank, T. Nagar Branch

6. Documents Enclosed

- Memorandum of Understanding dated 3 January 2024 (Annexure A)
- Bank statement of joint account for period 1 Jan 2024 to 10 Mar 2024 (Annexure B)

3. WhatsApp chat transcript between complainant and accused, 20 Jan - 1 Mar 2024 (Annexure C)